The Future of EVIDENCE *in the Digital Age*

Today's Managing Partner original publishings

By Dan Regard

iDiscovery Solutions

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Prior to founding iDiscovery Solutions, Inc. in 2008, Mr. Regard was the national director of e-Discovery for LECG. He was also the national director of Electronic Evidence & Consulting for FTI Consulting and was an electronic discovery and data analytics team leader in Analytical Dispute Services at Deloitte & Touche, where he managed multi-national, multi-jurisdictional, and multi-counsel litigation support projects. He began his career as the founder of a nationwide litigation-technology company.

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Executive Summary

The Future of Evidence in the Digital Age

In a ten-article series for his column "Regarding Evidence with Dan Regard," published exclusively through Today's Managing Partner, iDS Founder and CEO Dan Regard explores how technology is transforming evidence, litigation, and dispute resolution. From mobile devices to industrial sensors, digital systems now generate records that bring precision, context, and accountability to the legal process. Legal teams must adapt how they investigate, prepare, and present cases to take full advantage of this new reality.

Key Insights From the Series:

1. **System-Generated Data Is Reshaping Modern Evidence**
   Digital systems produce time-stamped, objective records that complement human accounts. Vehicle telemetry, financial logs, and other automated data sources clarify timelines, reduce uncertainty, and strengthen case strategy.

2. **Digital Deception Is Rising**
   Deepfakes, shallow fakes, and synthetic media complicate trust. Authenticity must be verified with structured evaluation frameworks and early forensic consultation to ensure reliability.

3. **Mobile Forensics Goes Beyond the Device**
   Smartphones are entry points into broader ecosystems of data. Effective investigations trace information across applications, cloud services, and connected systems while maintaining context and integrity.

4. **Proof of Origin Outweighs Chain of Custody**
   Digital hashing ensures integrity, but courts increasingly focus on where evidence came from and who created it. Authenticity now depends on provenance as much as proper handling.

5. **IoT and IIoT Devices Provide Independent Context**
   Connected devices record behavior, movement, and system conditions passively. These records influence liability, validate claims, and inform dispute resolution earlier in the process.

6. **Data Must Be Interpreted for Humans**
   Raw logs and telemetry don't persuade on their own. Legal teams must translate technical information into clear, visual narratives that explain cause, effect, and relevance.

7. **Pre-Trial Strategy Shapes Outcomes**
   Effective cases start long before trial. Gathering data with context, anticipating objections, and planning for admissibility strengthen credibility and minimize surprises.

8. **Integration of Technology and Legal Practice**
   Attorneys, technologists, and experts must collaborate throughout collection, analysis, and presentation. Cohesion ensures that digital evidence is both credible and compelling.

9. **Falsified Data Is No Longer Rare**
   The rise of digital tools has made false evidence easier to produce and harder to spot. Legal teams that question, verify, and course-correct early protect both their cases and their credibility.

Executive Summary

The Future of Evidence in the Digital Age

Why This Matters:

Digital evidence plays a central role in litigation and dispute resolution. Teams that understand how data is created, authenticated, interpreted, and presented gain a strategic advantage. This series equips legal professionals to assess risk, build credible narratives, and make data-driven decisions with confidence.

Whether readers explore all ten articles or focus on select insights, the takeaway is clear: the rules of evidence are evolving, and legal teams must evolve with them.



The Evolution of Evidence

From Testimony to System-Generated Data

For centuries, legal disputes relied almost exclusively on testimonial and physical evidence. Courts relied on witnesses to recount events and on tangible objects like contracts, weapons, or property to support their claims. This method had inherent limitations—human memory is fallible, physical evidence can degrade, and bias often plays a role in shaping narratives.

Over time, we saw that the introduction of documentary evidence—written contracts, business records, and later emails and digital documents—improved reliability. Courts increasingly recognized that documents could preserve an account of events far more accurately than human recollection. However, even written evidence depended on testimony to establish its origins and authenticity.

Today, we are witnessing another paradigm shift, one that is as disruptive as the move from oral testimony to written records: the rise of digital and transactional evidence. Contrary to what you might expect, this is not email, text messages, and social media. It is largely non-textual data. I call this System-Generated Data (SGD)— and this new category of evidence is fundamentally changing how facts are established in legal disputes.

What Is System-Generated Data (SGD)?

SGD refers to data automatically created and logged by digital systems, independent of human input. Unlike traditional documents that require a human to write, edit, and store them, SGD is generated passively by machines and algorithms. Examples include:

- Mobile device location logs: Tracking user movements with GPS and cell tower data
- Internet of Things (IoT) sensor data: Smart home devices, wearable fitness trackers, or connected car logs
- Industrial Internet of Things (IIoT) sensor data: devices that track weather, the electrical grid, pipelines, manufacturing, shipping, and more.
- Financial transaction logs: Automated banking records, cryptocurrency transactions, and payment confirmations
- Email and communication metadata: Records of when a message was sent, received, and read
- Autonomous vehicle telemetry: Sensor data from self-driving cars documenting acceleration, braking, and environmental factors

What makes SGD distinct from previous forms of evidence is its objectivity and granularity. It doesn't rely on human memory or bias. Instead, it provides a machine-recorded, time-stamped, and structured representation of events. In many cases, it tells us what actually happened—often with more precision than a human witness ever could.

How SGD is Transforming Litigation

The rise of SGD is reshaping legal investigations, case strategy, and court proceedings in several key ways:

1. Replacing Human Testimony with Digital Trails

Juries have traditionally been tasked with evaluating the credibility of witnesses—determining who seems more believable. But with SGD, the focus shifts. Instead of two drivers testifying about a car accident, their vehicle telematics and GPS logs may provide an objective reconstruction of the crash.

2. More Facts, Fewer Inferences

SGD reduces the need for juries and judges to fill in gaps with assumptions and inferences. With surveillance footage, location data, and timestamped logs, courts can reconstruct events in ways that were previously impossible. And this data is often generated on a frequency basis that approaches constant and pervasive. The burden of interpretation shifts from human testimony to data analytics and expert witnesses.

3. Changing the Role of the Expert Witness

In an SGD-driven world, expert witnesses will play an even larger role—not just in analyzing data, but in translating complex digital evidence for juries and judges. For example, an AI algorithm flagging financial fraud must be explained in a way that makes sense to non-technical decision-makers.

4. Authentication and the "Proof-of-Origin" Challenge

The rise of SGD introduces new challenges in authentication and admissibility. When dealing with physical evidence, maintaining an unaltered state after acquisition is a key concern, known as the "chain of custody."

In contrast, digital evidence can be digitally hashed, allowing its integrity to be easily verified later, making the traditional chain of custody less critical. However, understanding the origin of digital evidence before it comes under our control is becoming increasingly important—and more feasible. Looking ahead, courts may need to adopt "proof-of-origin" standards when evaluating authenticity and admissibility.

Preparing for the Future of Evidence

As the legal system adapts to the growing presence of SGD, litigators and investigators should:

- Understand what types of digital evidence exist and how they are stored.
- Work with experts who can authenticate and interpret digital trails.
- Develop courtroom strategies that leverage SGD effectively while explaining it to judges and juries.

The shift from oral testimony to documentary evidence reshaped the legal world once before. We are now at the threshold of a similar revolution—one in which data, not words, may become the primary storyteller in the courtroom.

Closing Thoughts: Join the Conversation

This is just one piece of the bigger conversation on the future of evidence. As legal professionals, we are relied upon to stay ahead of how emerging technologies impact investigations, case strategy, and courtroom advocacy. It's important to partner with people who specialize in helping law firms, corporations, and regulators navigate the challenges of digital evidence—whether it's mobile forensics, AI-generated data, or system logs that rewrite how we establish facts. Let's continue the discussion.

The Rise of Deepfakes

The Challenge of Deep and Shallow Fakes in Litigation

The courtroom is no longer just a battleground for facts—it's now a proving ground for digital truth. With the rise of Generative AI, litigators face an unprecedented challenge: how to separate genuine evidence from sophisticated forgeries.

False Evidence is Not New

The submission of false evidence in court is not new. It is as old as trial itself. But in the last 20 years, the overwhelming quantity of evidence submitted in court is digital in origin, and almost all litigants have access to digital tools. This combination of factors has made it easier than ever for people to create synthetic documents and believe that courts won't scrutinize that evidence (because it comes from "technology").

I know this personally because we are often hired in cases to test and validate, or dispute, evidence authenticity. What used to happen occasionally is now a regular occurrence.

And now we have GenAI. If GenAI has not made the situation worse, it's certainly made the perception of the situation worse and increased the awareness of the potential.

Before digging into this further, some vocabulary review is appropriate. I consider "synthetic media" to be any digital file that is created artificially. All synthetic media is not bad. There are a myriad of reasons for creating synthetic content. This includes artistic purposes, modeling, testing, or just plain amusement. But when the intent (the mens rea) of the fabrication is to deceive, then it moves from synthetic to "fake."

When a file is made from scratch, we call that a "deepfake". This is often applied to videos, but can apply equally to images, audio files, or even documents such as emails, texts, or social media posts.

When a file is made by modifying an existing file, we call that a "shallow fake." This can be pulling a video clip out of context, editing an audio file, or modifying the addresses or time stamp on an email.

We have seen both, but in most of the cases we work on the shallow fake is more pervasive than the deepfake. And while we have worked on audio and video cases, the majority of the cases we see are document based. Contracts, emails, and text messages predominate.

The Liar's Dividend

Finally, the rise in actual cases involving fabricated digital evidence, combined with heightened awareness driven by the rapid advancement and marketing of GenAI, has intensified concerns about misinformation. In an era where "fake news" has become a rallying cry, a troubling phenomenon has emerged—the Liar's Dividend. This concept refers to the advantage that individuals or parties gain by disparaging any unfavorable evidence as false, regardless of its authenticity. By casting doubt on legitimate evidence, bad actors can erode trust in the judicial process, forcing litigants and courts to expend significant resources proving that even valid evidence is real.

With this background, what is the solution to this increase in false evidence, and what is the answer to the Liar's Dividend?

Three Steps to Detect and Verify Suspicious Evidence

After handling hundreds of disputes, we've identified three key steps to detect false evidence.

1. Trust Your Gut

Many attorneys sense when something is off but hesitate to challenge digital evidence due to technical uncertainty. Trusting your instincts is the first step – if something feels wrong, investigate further. If it seems too good to be true, maybe it is.

2. Apply the Regard 3-Part Test

I call this the Regard Test because I developed it. Ask yourself three simple questions:

- Is this a **key** piece of evidence?
- Is there **no original** document or file?
- Is there a **complicated story** behind its existence?

If the answer to all three is yes, there's a high likelihood the evidence is falsified.

3. Seek a Second Opinion

Find a way to verify or invalidate the evidence by cross-checking against other documents for inconsistencies. If gaps remain, conduct additional discovery. Finally, consult a forensic expert—they can often spot telltale digital irregularities or metadata anomalies that signal fabrication.

Rule 902(13) & 902(14): A Step Forward, But Not a Complete Solution

The 2017 amendments to the Federal Rules of Evidence (FRE) introduced Rules 902(13) and 902(14), expanding self-authentication for digital evidence. Rule 902(13) allows machine-generated records—such as logs or transaction data—to be admitted without live testimony. Rule 902(14) permits digital copies—such as forensic images of mobile devices, or copies of mailboxes—to also be admitted without live testimony. These amendments streamline authentication and reduce the burden of proving the integrity of large volumes of electronically stored information (ESI) in litigation.

While these rules improve efficiency, they do not address the rising risks of falsified evidence, including deepfakes and synthetic documents. They work well for structured, auditable data, but may fall short when a single, critical piece of evidence is disputed. However, there are other rules in Civil Procedure that can supplement. These include FRCP Rules 11(b) Representations to the Court; Rule 26(g) Certification of Discovery; and Rule 34 Document Production.

New amendments are also being considered to deal with AI-generated materials.

Digital deception is evolving rapidly, and legal professionals must evolve with it. The rules of evidence are also in flux, and those who adapt now will be best positioned to navigate the future of litigation. Let's work together to ensure authenticity is not just assumed—but provable when necessary.

Closing Thoughts: Join the Conversation

This is just one piece of the bigger conversation on the future of evidence. As legal professionals, we are relied upon to stay ahead of how emerging technologies impact investigations, case strategy, and courtroom advocacy. It's important to partner with people who specialize in helping law firms, corporations, and regulators navigate the challenges of digital evidence—whether it's mobile forensics, AI-generated data, or system logs that rewrite how we establish facts. Let's continue the discussion.

Master the Evolving Challenges of Mobile Forensics

In today's digital age, mobile forensics plays a vital role in legal and criminal investigations. Mobile devices store crucial personal and professional data relevant to legal disputes and criminal investigations. Extracting and analyzing this data presents numerous challenges, from encryption and privacy concerns to data volatility and device security features. Thankfully, there are evolving tools and techniques for recovering, authenticating, and presenting this evidence in litigation.

Let's examine the current landscape of mobile forensics, the emerging methodologies in the field, and the ongoing challenges that legal and forensic experts face.

The Evolving Role of Mobile Data Forensics

Mobile device data has become a cornerstone of digital investigations. Whether in civil litigation, corporate internal investigations, or criminal proceedings, mobile forensics offers a direct window into user communications, location history, and application usage. Text messages, call records, emails, and social media interactions are often pivotal in establishing timelines, verifying alibis, or proving intent. Additionally, geolocation data and metadata embedded within digital files can provide context to events and actions, enhancing fact-finding in legal proceedings.

Here are three areas of mobile forensics that have been eye-opening to our team:

1. Start with the Phone, but Don't End There

When I first got into mobile forensics, the smartphone was the goal, the end target, the ultimate jackpot of data. Now we see it as the beginning of an investigation where threads emanate outwards toward other systems, cloud accounts, and connections. Do you have access to a phone? My first step is to look at the list of installed apps and browser history.

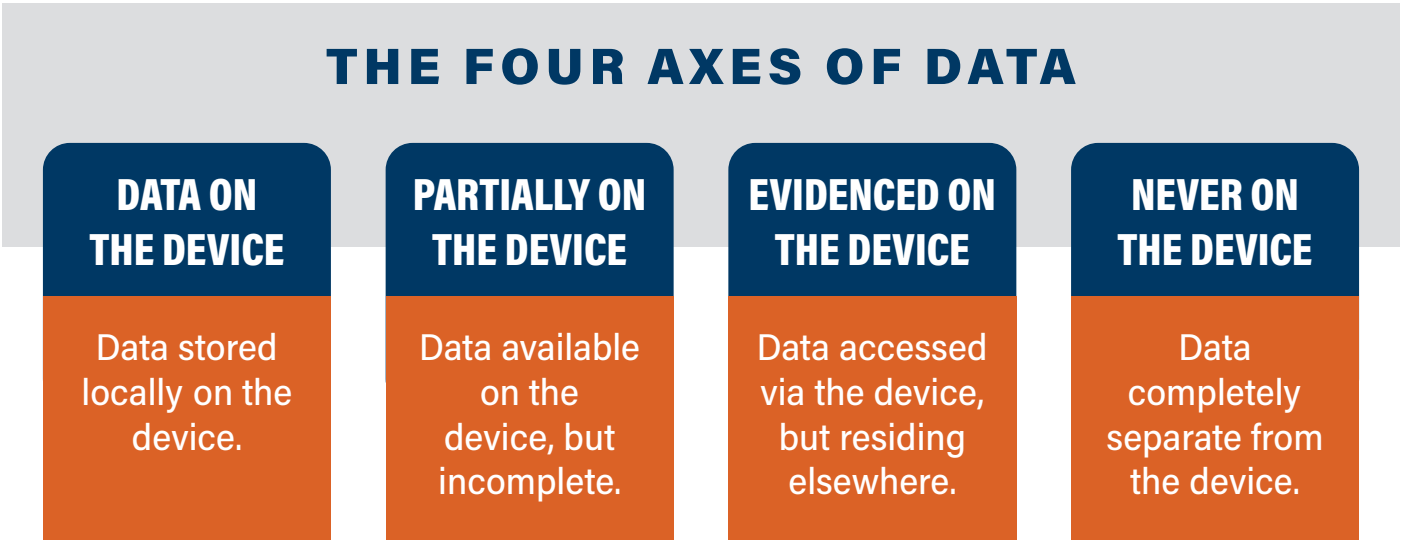
2. You Can't Always Get What You Want

To riff on the classic Rolling Stones' lyric: "You can't always get what you want. But if you try sometimes, well, you might find you get what you need"—unless you don't. In that case, you need to look elsewhere.

For example, the iPhone now holds email in a special memory enclave. We cannot (currently) acquire email in bulk directly from the phone. You're better off getting the user credentials and collecting from the "cloud."

3. Smartphones Have Four Axes of Data

That's right. There are four axes of data associated with smartphones. Data that is on the device (and can be acquired). Data that is partially on the device (such as only 2 weeks of email). Data that is evidenced on the device but does not reside on the device (such as browser history). Data that was never on the device (such as phone carrier Customer Detail Records [CDRs]).



For these reasons, the mobile forensics investigative paradigm has shifted from "Follow the Phone" to "Follow the Data" whereby each type of data may need its own collection playbook.

Everything is Subject to Change

Oh, and as for the Caveat Lector – everything is subject to change. The data we can acquire, and from where we acquire it, can change on any given day due to updates in the operating system, the application, the user configuration, or the tools we use – where developers are constantly in a game of cat and mouse trying to pierce the protections and encryption that device makers are constantly strengthening.

For example, recently a client asked us to capture some specific Snapchat messages. Snapchat is designed to be ephemeral, meaning that snaps are meant to delete after a short period. However, under certain conditions, forensic tools can still recover this data. Sometimes.

For this client, we designed a multi-layered strategy:

- We performed a physical image acquisition of the smartphone—in this case an iPhone— and used Cellebrite to extract recoverable data from the Snapchat application.
- We went beyond the device and used the user credentials to perform a cloud-based collection via Oxygen Forensics, targeting Snapchat's cloud-stored data.
- We then logged directly into the user account, and used Snapchat's built in "Download My Data" feature to acquire the official data footprint
- We then reverted back to the phone image and searched Photos for screenshots of Snapchat messages that may have been saved manually.

We then discussed, but decided not to pursue:

- iTunes backups of the iPhone
- The imaging and extraction of data from other connected devices
- Backups in the user's iCloud account
- App-specific syncing to the user's iCloud account

Snapchat is a great example of a multilayered approach to data-centric forensics. So, the next time you're in an investigation, instead of thinking about the container, start thinking about the contents. Determine your case needs and build a plan from there.

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Rethinking the Chain of Custody

Proof of Origin and the Future of Digital Evidence

A hush washed over the courtroom as the prosecutor held up a large manila envelope. The defense attorney watched closely as the envelope was opened, revealing a blood-stained handkerchief inside a plastic evidence bag. A label on the bag documented the journey of the evidence—each name, each date, each transfer from the crime scene to the evidence locker to the prosecution's hands that morning. The "chain of custody" was intact. The evidence was authenticated. It was admitted.

A chain of custody protects physical evidence. Every person, every handoff, every storage location is manually recorded to ensure that the evidence remains untampered. A missing signature, a gap in the log, and the entire piece of evidence could be challenged or thrown out altogether.

But what if you could take any piece of evidence, today, and instantly prove that it was unmodified, unaltered, unchanged from the moment it was collected? That would alleviate the need for meticulous tracking, and the reliance on procedural paperwork.

Welcome to the world of digital evidence.

Integrity is Easy in the Digital World

Digital evidence (e.g., emails, videos, documents, hard drive images, etc.) doesn't require a chain of custody the way physical evidence does. Instead, it has something far more precise: the digital hash value.

A digital hash value is a mathematical fingerprint of a file. When a file is created or collected, forensic software tools run a hashing algorithm (usually MD5, SHA-1, or SHA-256) to generate a fixed-length string of characters, unique to that exact file. If a single bit changes, the hash value changes.

It's that simple.

A file's integrity isn't confirmed by tracking every hand that touched it. It's confirmed by re-hashing it at any time and comparing it to the original hash. If the values match, the file hasn't changed.

No paperwork. No signatures. No need to rely on memory or human process failures. Just math.

For this reason, these hashing algorithms are also part of Blockchain security.

So, What's the New Challenge?

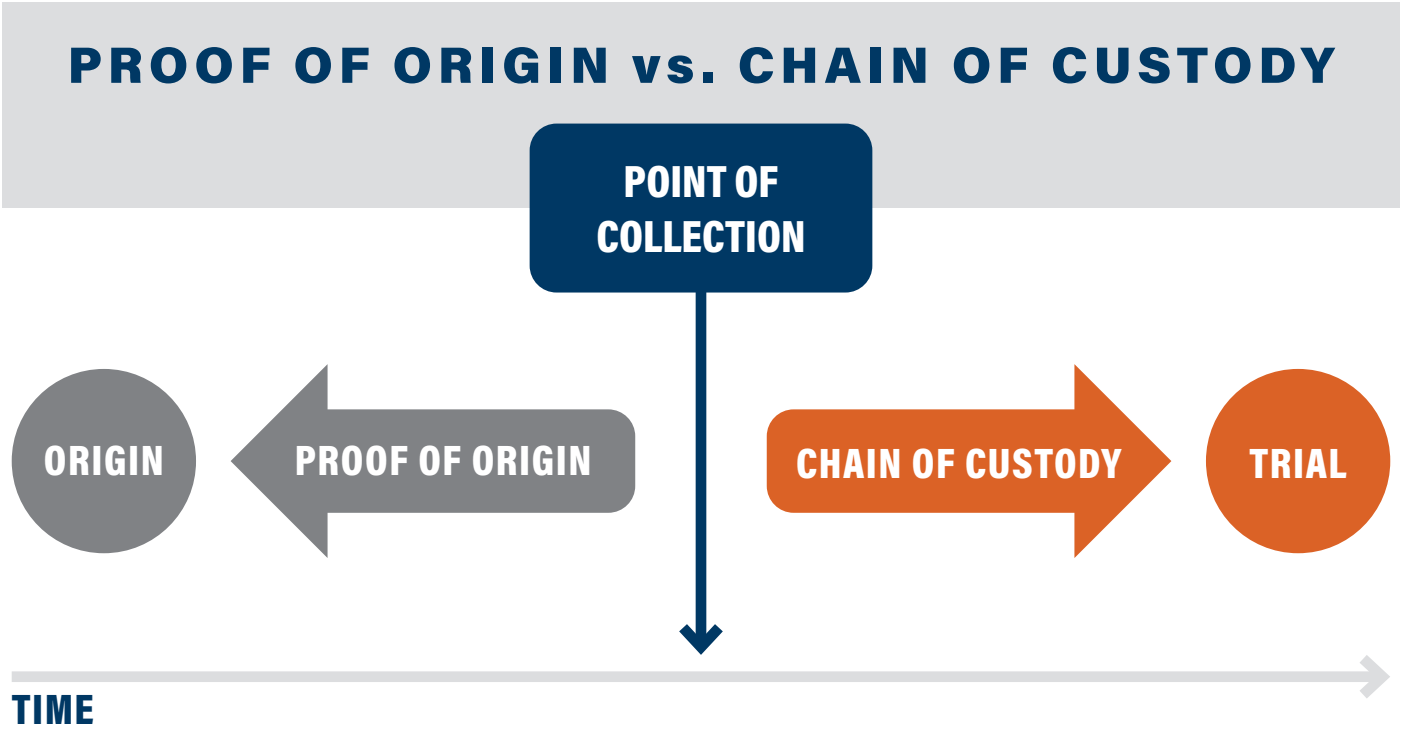
If proving the integrity of a digital file is now trivial, where do we need to focus our attention?

The real challenge and value is proving where it came from. Integrity is no longer the issue. Authenticity is.

In an era of deepfakes, altered documents, and synthetic media, we need more than just proof that a file hasn't changed. We need "proof of origin"—a way to confirm not just that a file is intact, but that it is real.

Proof of Origin: The New Standard for Digital Evidence

Every digital artifact leaves a trail. Emails have headers. Documents have metadata. Photos and videos contain embedded timestamps, GPS locations, and device signatures. These digital breadcrumbs provide "proof of origin"—a way to trace a file back to its true source.



This is where forensic investigations are shifting. It's no longer just about checking a file's integrity. It's about answering deeper questions:

- Where did this file come from?
- Who created it?
- Was it modified? If so, by whom and when?
- Is this video a genuine security recording, or was it generated by AI?

Example: Verifying a Video's Authenticity

Imagine a criminal trial where the key evidence is a security camera video of a suspect at a crime scene.

The defense claims the footage is fake. Maybe it was altered. Maybe it was AI-generated. Maybe it was never recorded by the surveillance system at all.

A simple hash check won't help. The defense isn't arguing that the file has changed since it was collected—they're arguing that it was never real to begin with.

That's where proof of origin comes in. Investigators can:

1. **Analyze metadata to confirm whether the file was actually recorded by the security system.**
2. **Check embedded device signatures to ensure it came from the correct camera model.**
3. **Cross-reference logs from the security system to see if the file matches recorded events.**
4. **Use forensic AI tools to detect frame inconsistencies or signs of digital manipulation.**

With proof of origin, the focus shifts from proving that a file is unchanged to proving that it is genuine.

Why This Shift Matters

Forensic investigations, legal proceedings, and cybersecurity operations have relied on chain of custody for decades. But in a digital world, that model is becoming obsolete. At the same time, Deepfakes and AI-generated content are changing everything. A world where anyone can fabricate evidence means proof of origin is more important than ever.

Here's why:

- Digital evidence is not a physical object. It can be copied perfectly, stored infinitely, and hashed at any time to confirm integrity.
- The burden of proof is shifting. Courts no longer just ask, "Was this file handled correctly?" They now ask, "Was this file ever real?"

What's even more interesting is that principles behind "proof of origin" can be increasingly applied to any evidence—even physical evidence. Thanks to heavily automated and integrated supply chains and the integration of digital features, many physical items can be traced as if they were digital files. Similarly, direct testimony can now be tested in ways that were not available 20 years ago.

In short, virtually everything in the world is currently created by, controlled by, or recorded by computerized systems. And those data trails allow us to verify (or challenge) almost any object, event, or memory.

Where We Should Invest Our Resources

Chain of custody for digital assets has become a de minimis exercise. It's still good practice. It's still part of the forensic process. But it's no longer where we should invest our efforts.

Instead, we should be focusing on proof of origin and on developing and refining techniques to confirm where digital evidence comes from, who created it, and whether it is real.

In courtrooms, corporate investigations, and intelligence operations, the challenge is no longer tracking every touchpoint of a file. The challenge is proving its authenticity in a world where digital deception is easier than ever.

This is the future of forensics.

Closing Thoughts: Join the Conversation

This is just one piece of the bigger conversation on the future of evidence. As legal professionals, we need to stay on top of emerging technologies.

Let's continue the discussion on this LinkedIn post.

Billions of Silent Witnesses

How the IoT Is Reshaping Litigation

In the digital age, we are witnessing the rise of a new category of evidence—one that is automated, omnipresent, and increasingly irrefutable. The Internet of Things (IoT) and its industrial counterpart, the Industrial Internet of Things (IIoT), have quietly transformed the way businesses, consumers, and governments gather data.

And the number of these devices is staggering.

According to Statistica, the number of connected IoT devices worldwide surpassed 13 billion in 2022 and is expected to reach more than 40 billion by 2034. Similarly, GlobalData projects the global IoT market will exceed $1.8 trillion by 2028, driven by smart factories, predictive maintenance, and supply chain optimization.

The implications for litigation and dispute resolution are profound. IoT and IIoT data are serving as autonomous, incorruptible records of past events, reshaping how facts are established in legal proceedings.

A Growing Impact on Litigation

In criminal law, wearable devices have already played pivotal roles. In a 2017 Connecticut murder case, data from a victim's Fitbit contradicted the suspect's alibi, showing physical activity long after the suspect claimed she had died. This case demonstrated how wearable tech can serve as digital witnesses to movements, exertion, and even heart rate fluctuations.

The IoT is also transforming personal injury and insurance disputes. Vehicle telematics data has been used to refute driver claims in accident cases. In one instance, telematics data showed that a driver had been accelerating moments before a crash, contradicting their claim of appropriate braking.

In the realm of employment law, smart ID badges equipped with RFID tracking have been used to verify employee movements, determining whether a worker was on-site at a specific time. These records have been introduced in wrongful termination cases to challenge or corroborate employee testimonies.

Industrial IoT (IIoT) is particularly impactful in product liability cases. In a recent lawsuit, a manufacturer was accused of delivering faulty components that failed under stress. However, IIoT sensor logs from the factory floor revealed that the parts were subjected to out-of-spec conditions after they left the facility, exonerating the manufacturer and shifting liability downstream.

Challenges of the Technology

Despite its benefits, IoT-based litigation faces critical hurdles. Data authenticity and proof of origin are crucial, as digital records can be manipulated. Courts may require cryptographic verification to certify evidence authenticity.

Data retention and access also pose challenges, as many IoT devices delete old data to make room for new data. If data retention policies aren't well-defined, crucial evidence could be lost before litigation begins. This is even more of an issue for the emerging area of edge computing.

Edge computing is where the remote devices are not just sensors, but fully enabled computing systems that can collect, process, and transform data, and make localized decisions. Some examples are factory robots, autonomous vehicles, Mars Rovers or even traffic-light controllers.

By processing data closer to the source, edge computing significantly reduces network latency, translating to quicker response times and real-time decision-making capabilities. This is crucial for applications like autonomous vehicles or industrial automation. Moreover, edge computing allows for greater attention to privacy, as edge nodes can act as an intermediary layer between IoT devices and the cloud, allowing for data filtering and anonymization. But the data footprint for edge computing is often locally kept, high-volume, and short-lived. This makes collection impossible, and litigation challenging.

Dispute Resolution Also a Factor

The increasing reliance on IoT-generated truth is changing not only litigation but also pre-litigation dispute resolution. Companies are leveraging real-time IIoT monitoring to detect workplace safety violations before accidents occur, reducing lawsuits. AI-powered dispute resolution is also enabling algorithmic adjudication, where machine learning models assess liability in insurance claims or commercial disputes without human intervention.

As IoT and IIoT continue to proliferate, the legal landscape will undergo seismic shifts. We are moving toward a world where digital records, not human recollections, define the facts. To prepare for this future, attorneys, investigators, and compliance professionals must develop expertise in proving the authenticity and admissibility of IoT evidence, understanding how IoT data can support or refute legal claims, and leveraging IoT records in litigation strategy.

Here's an attorney checklist for IoT data:

1. Identification of Data

- Restate claims and defenses in data-centric terms
- Identify potential data sources
- Qualify data sources by availability, affordability, actionability, and admissibility
- Prioritize the data sources

2. Admissibility of Data

- Understand the chain of custody
- Confirm system integrity
- Verify time synchronization across devices
- Collect metadata and preserve original format
- Involve technical experts early
- Map to FRE 902(13)(14) where possible. FRE 902(13)(14) are recent amendments to the Federal Rules of Evidence (FRE) Rule 902, which facilitate the authentication of digital extractions and digital copies

3. Legal Claims

- Contextualize the data with the case facts
- Evaluate exculpatory and inculpatory potential
- Assess completeness and gaps
- Validate device functionality
- Identify potential manipulation or tampering
- Cross-check against other data sources

4. Legal Strategy

- Use early case assessment (ECA) to shape case strategy
- Anticipate motion practice
- Use depositions to test credibility, not just extract facts
- Develop expert testimony
- Educate the court on the IoT system in plain language
- Visualize IoT data for maximum jury or judicial Impact

The courtroom is evolving. In the next decade, cases will be won or lost not by the words of witnesses but by the silent testimony of billions of sensors embedded in our world. The question for litigators is no longer if IoT evidence will be critical—but whether they are ready to use it to their advantage.

In conclusion, the intersection of IoT, edge computing, and the law is creating a new frontier in litigation. As these technologies continue to evolve, so too will the legal frameworks that govern their use in court. The silent witnesses of the digital age are here to stay, and their testimony will shape the future of justice.

Closing Thoughts: Join the Conversation

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Let's continue the discussion on this LinkedIn post.

The Challenge for Juries

Making Sense of Digital Evidence in Trials

We live in a world where digital evidence has become the dominant evidence in the courtroom. If you've followed this series, you've already seen this shift in action. But even if you haven't, the message is simple: data is here.

Today I want to focus on the courtroom impact of that data—specifically, how it affects juries and how we should adjust our expectations and trial strategies. And the best teams do this well in advance of the actual trial.

The three areas I want to discuss are comprehension, aggregation, and presentation, plus some strategies for dealing with each one.

The Comprehension Issue

Collectively, we must assume that jurors do not understand digital jargon or the underlying mechanics of the devices they use every day. That includes mobile phones, email accounts, cloud storage, and even basic operating systems. Yet this is exactly where many disputes now reside, inside these systems.

When introducing digital evidence, patience and clarity are critical. Jurors do not need a computer science lesson, but they do need context. The story must be told in human terms, not technical ones.

The Aggregate Story Problem

Traditional disputes often revolve around a single, powerful event such as a document being signed, a photo taken, or a statement made. Digital evidence, by contrast, tends to tell a story through accumulation.

In many cases, no single artifact carries the case. Instead, hundreds or thousands of data points collectively reveal behavior over time. Logins, file transfers, messages, or access attempts each represent individual brushstrokes that form the larger picture.

I often use the phrase "the smoking trend" instead of "the smoking gun." The power lies not in one dramatic moment but in the continuity of digital behavior. The credibility of the data depends on sequence, frequency, and correlation rather than spectacle.

For practitioners, this requires investing in the discipline of data storytelling, showing how digital footprints align with known facts, timelines, and human behavior. Done well, the pattern becomes illuminating. Done poorly, it becomes noise.

The Expectation Gap

Finally, we also need to adjust to jury expectations. The so-called "CSI effect" primes jurors to anticipate a big reveal such as a video, a crystal-clear recording, or a forensic breakthrough that eliminates all doubt.

Reality is more subtle. Most digital forensics cases do not contain a perfect recording of the event itself. For example, it would be unusual to have a video of someone typing an incriminating email. Instead, we rely on surrounding digital context. We present how the device was under the user's control, used their account, required validated credentials, and how other contemporaneous activity points to the same individual.

The evidence becomes circumstantial but cumulative, technical but human. Bridging this expectation gap means helping jurors understand why this type of proof is valid and compelling, even if it looks different from what they have seen on television.

Preparing for the Digital Courtroom

Addressing these challenges requires both strategic foresight and presentation skill. Here are practical steps attorneys can take to address comprehension, aggregation, and presentation before and during trial.

Addressing Comprehension: Build a Common Language

- **Start early:** Bring your expert in during discovery. They can help shape interrogatories, depositions, and exhibit lists so the technical story you will tell aligns with the evidence you collect.
- **Develop analogies:** Work with your expert to craft plain-language explanations, such as "metadata is a digital fingerprint."
- **Educate the team:** Ensure everyone, from paralegals to lead counsel, uses consistent, accurate language in all phases of discovery and trial.
- **Connect to human behavior:** After each technical point, tie it to a relatable action, such as "This shows the employee was not just logged in but was actively accessing files they were not authorized to view."

Addressing Aggregation: Shape the Story, Not the Spreadsheet

- **Identify the "smoking trend":** Build your narrative around that trend, not the mass of raw data.
- **Curate the evidence:** Resist the urge to show everything. Select representative data points that illustrate the broader pattern and provide a clear roadmap that connects them.
- **Visualize the pattern:** Prepare timelines or data maps that make sequences visible. Jurors do not need every log entry; they need to see the shape of the story.

Addressing Presentation: Control Expectations and Guide Attention

- **Set expectations early:** In voir dire and opening statements, explain that this case is built on digital patterns, not a single dramatic moment.
- **Sequence testimonial strategically:** Help your expert reinforce, not overwhelm, the narrative. When jurors already understand the human story, the technical explanation confirms it rather than confuses it.
- **Design with simplicity:** Create visuals that follow the "one idea per slide" rule. Avoid clutter so jurors can focus on meaning, not mechanics.

Digital experts can turn complexity into credibility, but only when they are part of the storytelling team rather than mere technical witnesses. Attorneys who collaborate early, refine the narrative, and visualize the pattern give the jury a chance to understand and believe the data.

Why It Matters

As more disputes turn on digital activity, the ability to present technical data in human terms is becoming a competitive advantage. It shapes not only how juries deliberate but also how judges and opposing counsel evaluate evidence throughout discovery and motion practice.

The best trial teams work to make complex data understandable and to turn digital noise into a coherent narrative. If jurors cannot follow the evidence, the truth risks being lost in translation.

Closing Thoughts: Join the Conversation

This is just one piece of the bigger conversation on the future of evidence. As legal professionals, we need to stay on top of emerging technologies. I would like to thank Ken Lopez, from Persuadius, for his insights and contributions as an expert in trial graphics and jury consulting.

Let's continue the discussion on this LinkedIn post.

Preparing the Digital Case

Pre-Trial Strategies for Attorneys and Experts

Every winning trial has a story, and the most effective ones start taking shape early in the case, even before discovery requests are drafted. This is especially true when digital evidence is involved.

As we have learned from watching episodes of "CSI: Crime Scene Investigation," juries' expectations are higher than ever. They want to know how and why, and they want to see pictures and reveals.

Incorporating your narrative throughout the phases of discovery helps ensure your evidence has the greatest impact.

Frame Your Narrative

Start by framing your narrative. I won't try to teach you, a seasoned trial counsel, how to frame your narrative, but know two things:

1. **The better you understand your data sources, the more clearly you can define what to include and what to leave out of your narrative. A solid grasp of your digital sources and artifacts can also help you make stronger, more defensible assertions.**
2. **The more familiar your team is with the overall narrative, the better they can support it. This is especially important when multiple layers of your team are involved in targeting, collecting, extracting, and interpreting digital evidence.**

Advanced tip: Getting your technology terminology right, early on, can avoid confusion within your team, can ensure that deposition answers and other admissions are easier to relate to, and that you personally have a better grasp of the evidence when speaking to the jury. Are we talking about SMS messages, or iMessages? Are we talking about USB drives, or virtual cloud storage? Are you referring to "that cloud storage thing" or can we name it "OneDrive"?

Once that framework is clear, it can guide preservation notices, data requests, and collection plans. The goal is not to capture every possible byte but to target data that supports or challenges key claims. Over-collection wastes resources and muddies the eventual story. Focused discovery produces cleaner, more persuasive evidence.

Collect for Context

For digital evidence, how data is collected is often as important as what is collected. Content alone seldom tells the full story. Metadata, such as when, where, and how communications occur can be just as important. This is especially true in an era of channel multiplication and signal collapse, creating the need for greater context.

Channel multiplication refers to the proliferation of communication platforms, devices, and message types that divide conversations into separate streams. Conversations today are unfolding across multiple platforms, including texts, Teams, Slack, WhatsApp, Zoom chat, and others. Participants switch between channels effortlessly, fragmenting both time and context.

There is a related emerging phenomenon, I refer to as signal collapse. As communication becomes constant and continuous, individual messages are shrinking in size, sometimes consisting of just a single emoji or image file. This brevity relies heavily on shared understanding and timing, which can be lost when evidence is later reviewed out of context. For litigators and experts, this creates a new challenge: the data may be complete in quantity, yet incomplete in meaning.

Because of this, it is no longer enough to collect from a single source. Attorneys and experts must identify and consolidate data from all relevant channels. The process of bringing those fragments together, along with their associated metadata, is referred to as context collapse.

Contextual data, such as metadata, timestamps, system logs, and device identifiers, provide the behavioral clues that jurors later find foundational and credible.

Pay Attention to Admissibility

Authenticity and admissibility are gaining importance as synthetic and AI-altered content becomes more prevalent. Jurors expect to know how digital evidence was verified and preserved.

- Establish provenance early by tracking where each dataset originated, who handled it, and how its integrity was confirmed.
- Connect artifacts to human behavior through credentials, devices, or locations. Those links make the evidence relatable and believable.
- Anticipate objections with documentation showing why the data is reliable and unaltered, supported where possible by certifications under Rules 902(13) and 902(14).

A clear chain of custody protects admissibility and reassures jurors that the digital trail is genuine.

Prepare All Materials with the Jury in Mind

Every aspect of preparation should anticipate how the jury will interpret the evidence, from the way data is analyzed to the way methodology is explained.

Digital experts often analyze data for precision, but the ultimate goal is comprehension. Each analytical step should anticipate how results will be explained to non-technical audiences.

- **Think in sequences**. Think in sequences, not snapshots. Juries understand cause and effect better than isolated events.
- **Use plain language.** Annotate findings in plain language as the analysis proceeds; those notes will later inform reports and visuals.
- **Distinguish facts.** Separate fact from inference to prevent overstatement and maintain credibility.

By analyzing with the jury in mind, experts create evidence that is both technically sound and narratively clear.

Methodology Becomes Part of the Narrative

How evidence is unlocked, recovered, or reconstructed can shape how it is perceived. Jurors do not need to understand encryption algorithms, but they do need confidence in the process.

- Explain the technique used for extraction or recovery, including validation steps.
- Disclose limitations honestly, such as missing, deleted, or corrupted data. Transparency reduces the impact of cross-examination.
- Emphasize repeatability by showing that another qualified expert could replicate the process with the same tools and procedures.

Throughout the process, ask three questions:

1. **Can the method be explained?**
2. **Can the relevance be explained?**
3. **Can the method be replicated and verified?**

When the method is clear, the evidence feels trustworthy, even when the technology is complex.

Collaborative Storyboarding

The best digital cases are built through collaboration. Before expert reports are finalized, create a joint storyboard showing how digital evidence supports each issue in the case.

A storyboard should include:

- The chronological flow of events
- The data sources that confirm or contradict testimony
- The visuals needed to connect those points

This exercise aligns legal theory with technical proof and exposes gaps early, allowing time for refinement before trial.

Building Trust Before the Jury Arrives

Digital persuasion begins long before jurors take their seats. From the first collection to the final exhibit—every decision either strengthens or weakens credibility.

By preparing the digital case with both precision and foresight, attorneys and experts ensure that evidence is defensible, understandable, and persuasive. The result is a narrative that survives both cross-examination and human scrutiny. Clarity built in discovery becomes clarity in the verdict.

Closing Thoughts: Join the Conversation

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From Courtroom to Codebase

Are You Ready for AI in Adjudication?

Are we ready for AI judges? Are we ready for algorithms to start passing judgment and rendering decisions?

Artificial intelligence, large language models (LLMs), neural networks—these tools have evolved rapidly in recent months and years to take on more and more tasks. They are spurring innovations and reshaping workflows across countless industries, including the legal sector, but also generating significant errors in certain situations. Notably, there have been at least 733 cases worldwide where AI hallucinations featured in court submissions as of January 2026.

Given this mixed track record, can we envision a future where AI might play the ultimate role in dispute resolution?

Well, yes. In fact, it's already happening. In Canada, Australia, China, and Mexico, various forms of Automated Dispute Resolution are already being used.

Examples from Around the World

In Canada, British Columbia's Civil Resolution Tribunal (CRT) is considered a pioneer of online dispute resolution with appealable automated decisions on small claims up to $5,000, and motor vehicle injuries up to $50,000. It relies on decision trees, expert systems, and automated triage to resolve small claims and strata disputes, with many cases concluding before human adjudication is required.

Australia's state-based civil and administrative tribunals are considered some of the most advanced public users of algorithmic dispute-resolution workflows. State tribunals such as NCAT, VCAT, and QCAT rely on rule-based intake, automated triage, and structured decision pathways to resolve tenancy, consumer, and small-value claims. While human adjudicators retain final authority, algorithms increasingly determine how disputes are often categorized, processed, and resolved without a hearing.

In the United States, algorithms already resolve entire categories of disputes, particularly high-volume, low-value matters. Courts and municipalities use rule-based online dispute resolution systems for traffic citations, parking violations, and small civil claims. Administrative agencies rely on automated eligibility and decision engines to adjudicate benefits and regulatory disputes. While human judges retain final authority, algorithms increasingly determine how disputes are categorized, processed, and often resolved without a hearing.

In the private sector, companies like Amazon and eBay are using online dispute resolution (ODR). As early as 2010, eBay disclosed that it was resolving roughly 60 million disputes per year, with approximately 90% handled entirely by software. Notably, eBay no longer publishes these figures. This omission reflects how normalized large-scale, algorithmic adjudication has become. Subsequent statements by Colin Rule and other ODR experts continue to describe the system as operating at massive scale, with human review reserved for a small minority of cases.

Part of the answer lies in realizing that not all cases are created equal. AI adjudication seems well suited for cases that are high-frequency and low-complexity. This is where efficiency is the primary goal and the outcomes do not involve significant human rights or liberty concerns. Combine this with remote access to the hearing, and you have a formula for speeding up the docket and improving access to justice.

For example, debt collection and eviction cases represent a large percentage of municipal dockets and are great candidates for ODR. A 2025 Stanford Law School report about the Los Angeles Superior Court docket report stated that Los Angeles has 12,000 evictions (writs of restitution), 45,000 debt collections, and 30,000 debt-buyer cases that are defaulted due to lack of engagement. AI also seems applicable to resolve minor traffic violations, which are minor in scale but not minor in quantity.

Other candidate cases are traffic cases, unemployment eligibility, standardized contract disputes, and even portions of international commercial arbitration, especially where case histories provide a large body of data that can used for training, where the cases are very repetitive, and there is a minimal or zero need to interpret human motivations, credibility, or ethical considerations.

High Demand for Adjudication Resources

Globally, many cases that could be adjudicated are not due to costs and delays. The World Justice Project found that in at least 62% of countries, a majority of people with legal problems who needed a mechanism for resolution could not find one.Generative AI and other forms of decision algorithms are still in their infancy. Yet they have progressed from struggling with natural language, to taking high school exams (2019), to passing the Uniform Bar Examination (2023). The future promises even more capability.

AI adjudication is already underway, whether you support it or not. And even if your cases are never decided by AI, the foundations it requires—clarity, consistency, and accountability—strengthen traditional decision-making as well. Building processes that work for both humans and machines leads to better outcomes, regardless of whether AI ever enters your courtroom or organization.

Another benefit of AI is that systematizing filing systems produces cleaner, more uniform data, which improves algorithmic performance. At the same time, advances in generative AI and natural language processing make it easier to analyze unstructured, messy data. Together, cleaner inputs and more capable tools lead to stronger, more reliable algorithmic analysis.

Preventing Hallucinations

We are also developing systems to control for hallucinations. Although "hallucinations" are currently inherent to the way LLMs work, there are systems already in the marketplace that control for hallucinations—especially where citations and references are concerned. Consider Harvey, Perplexity.AI, or Matey.AI , or newer alternatives such as Reliath.AI. These systems can limit the universe of documents considered, reinforce proper research and citation, or even establish a global gold-standard for certain facts (full disclosure: this author uses Perplexity.AI and resells Matey.AI).

There are millions of disputes, every year, that are candidates for some degree of algorithmic management or adjudication. When the right processes and guardrails are in place, we can use advanced AI tools to give millions of people greater access to justice and make more resources available for those with more complex needs.

AI adjudication is already part of our present. It will surely be a part of our future. In the words of author William Gibson, "The future is already here—it's just not very evenly distributed."William Gibson, "The future is already here—it's just not very evenly distributed."

Falsified Data in Litigation

Detecting, Challenging, and Correcting Unreliable Evidence

Have you ever had the sense that a piece of evidence was off, but you couldn't quite articulate why? It seemed too good to be true, too clean, too convenient.

If so, you're not alone.

Falsified evidence is appearing more frequently in litigation, and the trend shows no sign of slowing. Advances in digital tools, the proliferation of data sources, and the emergence of generative AI have lowered the barrier to creating persuasive, but unreliable, artifacts.

By falsified evidence, I'm referring to documentary, digital, or testimonial materials that have been fabricated, altered, manipulated, or misrepresented so that they no longer reliably reflect the events or information they purport to represent.

They fail to satisfy the reliability and authentication requirements of the Federal Rules of Evidence (particularly Rules 901 and 403). When produced or relied upon in discovery, they trigger the corrective and reasonableness obligations imposed by the Federal Rules of Civil Procedure.

Four practical questions frame the discussion:

1. **Why does falsified evidence happen?**
2. **Is digital evidence easy to create?**
3. **How can you detect falsified evidence?**
4. **What should you do when it appears?**
5. **Why does falsified evidence happen?**

False evidence is not new—there are historical examples—but the frequency of its occurrence, or at least the risk of it, has increased with the rise of digital evidence. Looking at the "Fraud Triangle" can help us explain the phenomenon.

The Fraud Triangle

When understanding why good people make bad choices, we can look to the Fraud Triangle, a concept criminologist Donald Cressey developed in his 1953 book: "Other People's Money: A Study in the Social Psychology of Embezzlement." Cressey identified three conditions that tend to converge in cases of intentional fraud: pressure, opportunity, and rationalization.

That framework remains useful today. As digital evidence becomes central to litigation, and as low-cost editing tools and generative AI proliferate, the cost of creating digital artifacts has dropped sharply. It's easy to understand the rise in false digital evidence.

As I once explained to a judge at a conference: imagine that all evidence were made of wood, that everyone had a fully equipped woodworking shop at home, and that each person also had a robotic carpenter capable of producing flawless replicas. How much falsified wooden evidence would you expect to see?

Probably a lot.

Fortunately, for trained investigators, these copies may look perfect but never are.

The Myth of Easy Digital Falsification

A common and dangerous misconception is that digital evidence is easy to fabricate or alter.

While individual digital artifacts are easy to create or modify, modern digital evidence is no longer isolated. Instead, this evidence is interconnected. It is replicated across devices, synchronized with servers, logged by systems, versioned in the cloud, and preserved in backups.

Every email, for example, has at least a sender and a recipient. But it also typically has multiple additional copies across phones, laptops, tablets, servers, cloud repositories, audit logs, and backup systems. Then there are variations sent as forwards and replies. These interdependent copies are difficult for single bad actors to access and extremely difficult, if not impossible, to fully falsify.

That interconnectedness is not a weakness. It is often the path to the truth.

A Three-Step Method for Detecting Falsified Evidence

In order to better identify and qualify falsified evidence, I teach a simple three-step approach to detection: the gut check, the checklist, and the second opinion.

1. **Conduct a subjective gut check. This is the sense that something's wrong. That the evidence appears too good to be true. The biggest challenge is that many attorneys shake off this feeling. They don't act on it. Instead, I teach attorneys to lean into this feeling, then triage the evidence by progressing to the second step.**
2. **Apply an objective checklist. This is the evaluation of four quick questions: have you been presented with a single piece of perfect evidence, with no original, and a complicated story? If the answer to all four of these is "yes," then you may well be dealing with falsified evidence.**
3. **Get a second opinion. This means looking for another source of information that can be used to detect or highlight differences. This can include supporting copies, conducting more discovery, holding a deposition, or even engaging a forensic expert to analyze the copy you have.**

Don't worry—you do not need to inspect every piece of evidence for falsification. As I once told a client: if you want to know which exhibit is the most likely candidate, the other side will usually tell you—it's the evidence they rely on most heavily.

It's Fake—What Do I Do Now?

Once you have moved through the three detection steps and have a good-faith basis to question reliability, the issue shifts from detection to management.

This requires understanding how the Federal Rules of Civil Procedure, the Federal Rules of Evidence, and the American Bar Association (ABA)'s Model Rules of Professional Conduct address false evidence. Each serves a different purpose.

ABA Model Rule 3.3 (Candor Toward the Tribunal) prohibits a lawyer from knowingly offering false

evidence. This rule protects lawyers from unfair discipline and hinges on actual knowledge. This high standard is "knowingly".

The Federal Rules of Evidence, particularly FRE 901, focus on authentication. It asks whether there is sufficient evidence that a document is what it purports to be. This protects the factfinder.

The Federal Rules of Civil Procedure protect the court and the process. FRCP 26(g), 26(e), and 11 impose duties based on the lower standard of "information," not knowledge.

Importantly, none of these rules require proof of intent.

Under FRCP 26(g), counsel certifies that discovery responses are complete and correct after a reasonable inquiry, based on their "knowledge, information, and belief." Under FRCP 26(e), that duty continues: parties must timely correct or supplement materially incomplete or inaccurate responses. FRCP 11 governs continued advocacy based on factual contentions.

A proper proffer can be simple and restrained. Something like: "We have identified material issues affecting the authenticity and reliability of Exhibit X that warrant correction or withdrawal before the Court relies on it."

That statement alone is often sufficient to trigger further diligence obligations under Rules 26(g) and 26(e). At some point, continued reliance on the evidence, refusal to investigate, or failure to correct can convert information into knowledge. Courts often describe this transition as willful blindness, reckless disregard, or "turning a blind eye."

Note that false evidence is categorically different than false testimony.

As Harvard law professor and defense attorney Alan Dershowitz famously observed, the adversarial system anticipates that witnesses may lie and relies on cross-examination to expose those lies. Documentary and digital evidence, however, enters the record with a presumption of reliability. For that reason, courts treat falsified evidence not as a credibility issue, but as a threat to the integrity of the process itself.

What Happens Next?

You have a choice—do you challenge the evidence before trial or do you challenge it in front of the jury?

In my cases, counsel made a proffer prior to trial. In my experience, when a rational proffer is made, the evidence is withdrawn about half the time. That is the outcome the rules are designed to encourage.

The other half of the time, we've seen parties double down. Cases proceed through motion practice and, occasionally, evidentiary hearings. Continued reliance on falsified evidence almost always makes matters worse. Technology is complex. Attempts to further explain or justify a problematic exhibit tend to introduce more inconsistencies, not fewer. And the submission of further bad evidence can convert "information and knowing" into "intent."

In a case we worked on, Rossbach v. Montefiore Med. Ctr., the judge stated it quite clearly:

"In short, at every step of these proceedings, [counsel] failed to take reasonable steps to preserve critical evidence and failed to recognize the gravity of his client's misconduct [in creating false evidence] and its implications for his own duties. He instead burdened the defendants and this Court by suborning his client's perjury and making frivolous and procedurally improper legal and factual arguments."

If the evidence is not withdrawn, the proffer often marks the earliest point for sanctions analysis, although courts sometimes consider conduct leading up to notice as well.

Two fairly recent examples of sanctions issued against the plaintiffs and their counsel for submitting and continued assertion of false evidence include Rossbach (later reversed in part, confirmed in part, remanded for sanctions, and settled for an undisclosed amount) and Laba v. JBO Worldwide Supply Pty Ltd.

Conclusion

Falsified evidence is no longer a fringe problem. It is an inevitable byproduct of a litigation system increasingly dependent on digital artifacts combined with easy access to digital tools and generative AI. Trusting your gut and asking four simple questions can effectively identify problem exhibits.

The good news is that the rules already provide a workable framework. The Federal Rules of Evidence protect the factfinder. The Federal Rules of Civil Procedure protect the integrity of the process. The ethical

rules protect lawyers from unfair discipline while demanding honesty once knowledge is established.

The real risk is not that falsified evidence exists. The real risk is treating evidentiary reliability as an afterthought, rather than a threshold question posed by FRE 401: "Is this evidence what it purports to be?"

Those who learn to detect falsified data early, raise concerns responsibly, and act proportionally will not only protect their clients—they will protect the court, the record, and their own credibility in an era where reliability can no longer be taken for granted.

Closing Thoughts: Join The Conversation

This is just one piece of the bigger conversation on the future of evidence. As legal professionals, we need to stay on top of emerging technologies.

Let's continue the discussion on this LinkedIn post.

Redefining Privilege

Work Product Doctrine in the AI Era

The legal industry has been stepping on GenAI landmines for more than a year now. The early headlines were about hallucinations, fabricated citations, and confident but incorrect statements of law. Those mistakes were visible, often embarrassing, and easy to understand. At the same time, the market moved in the opposite direction. Legal GenAI tools became financial unicorns, and even the perception of disruption started reshaping law firm economics and vendor economics. In short: GenAI created obvious risks and obvious leverage at the same time.

A newer risk category is harder to spot and potentially more consequential: when GenAI is used for legal analysis and drafting, what happens to the attorney-client privilege and work product doctrine?

This question has now surfaced in litigation through two opinions that are being discussed together: United States v. Heppner and Warner v. Gilbarco. They are often framed as "AI cases," but that framing obscures the more practical point Judge Anthony Patti essentially put on the record in Warner: the anxiety is not about AI in particular; it is about writing environments and how modern tools change control, retention, and access.

A Tale of Two Cases

Heppner arose in a criminal setting, where a defendant used Anthropic's Claude in connection with litigation preparation and the government sought permission to use AI-assisted writings found on seized devices. The Heppner court rejected claims of attorney-client privilege and work product. The reasoning emphasized that an AI tool is not a person, certainly not legal counsel, and that the defendant's workflow did not satisfy the requirements for protection. Separately, Heppner focused on confidentiality and the absence of a reasonable expectation that the materials would remain private given how the account was configured and what Claude's Consumer Terms of Service and Privacy Policy allowed.

Warner arose in a civil setting, where a pro se plaintiff used ChatGPT in connection with litigation drafting and the defense tried to compel the prompts and related materials. The court denied this

motion. The opinion reads like a reminder that the party work product doctrine is not limited to attorney work. It is Work Product Doctrine in the AI Era Redefining Privilege PAGE 44 a protection for litigation preparation, and the actual language in the Federal Rules (FRCP 26(a)(3)(B)) describes it as attaching to materials prepared by or for a party (or the party's representative). The court also made the waiver distinction explicit: work product protections are not waived as easily as attorneyclient privilege, and disclosure concerns generally turn on whether the material has been disclosed to an adversary or in a way likely to reach one.

For counsel advising clients, the most useful synthesis is not "one judge got AI right, and one judge got AI wrong." The more durable takeaway is that these outcomes are driven by doctrine and by workflow facts, not by whether a model is named Claude or ChatGPT. Heppner is heavily framed through confidentiality and attorney involvement, and it reflects how fragile privilege can be when the writing environment is treated as open or shared. Warner is centered on work product doctrine and Sixth Circuit waiver principles, and it reflects how work product can survive even when a tool involves hypothetical third-party handling, so long as the disclosure is not to an adversary or likely to reach one.

These cases also help sharpen a practical boundary for day-to-day legal work. The hardest use case is the one both courts were dealing with: litigation analysis and drafting. That is where prompts and outputs can look like strategy, mental impressions, and case theories. By contrast, precedent case summaries can be materially less risky when they are one-way transformations of data you already produced or received. A summarization tool may still create logs, but the risk profile changes when the user is not inputting incremental legal theories, framing, and argument structures into a third-party system.

So, what is the answer for outside counsel? Not whether to use GenAI, but how to use it in a way that matches the protection you intend to claim. The safest approach is to treat GenAI less like a "chat" and more like a writing environment that generates a discoverable footprint. Once you do that, the solutions become familiar. They look like privilege hygiene, vendor management, and information governance now applied to the newest tool in the stack.

The Four Problem Areas

There are four main problem areas and there is an answer for each one. They are:

- Legal advice: Role clarity and attorney supervision (AI is not counsel; counsel directed workflow)The data sources that confirm or contradict testimony
- Confidentiality and waiver: Third party exposure and waiver risk (terms, settings, adversary PAGE 45 pathway)
- Content management: Know the data footprint (retention, logs, custodians, preservation and collection)
- Hallucinations: Accuracy and quality control (verification, cite checking, human review)

The Solutions

The first problem is that GenAI is not a lawyer and cannot be allowed to masquerade as one. The legal fix is to design workflows that preserve the attorney's role as the source of legal advice and legal judgment. This is the "Attorney-In-The-Loop" solution.

That does not mean counsel must watch someone type. It means the use of the tool should be nested inside counsel's direction and review when the work involves legal theories, claims and defenses, and the mental impressions that are the very point of work product protection. The technical fix is to treat the system configuration as part of the legal workflow.

The second problem is sharing. Attorney-client privilege and the work product doctrine are exceptions, and those exceptions can be fragile. The legal fix is to assume that any disclosure to third parties might waive client privilege and to structure the tool accordingly, including vendor terms where appropriate and clear internal policies on what categories of legal content may be put into which systems. The technical fix is to use enterprise-grade environments where training on your data is disabled or contractually prohibited, access is role-based (or user-based), and retention is known and configurable. What matters is not whether a subscription is "paid," but whether the environment is designed to keep client strategy and facts out of third-party reuse and out of casual internal access.

The third problem is content management. In practice, most organizations do not yet have an answer to a simple question: where do your prompts live? If a dispute later asks for GenAI records, what exists, where

is it stored, and who controls it? The legal fix is to treat AI outputs and prompts as potential electronically stored information (ESI) and to establish governance rules that match the stakes, including retention, deletion, and export into privileged repositories where appropriate. The technical fix is to map the system like any other data environment: browser versus desktop versus mobile; fat client versus thin client; user workspace versus enterprise workspace; Application Programming Interface (API) versus interactive interface; logs and telemetry; backup and retention; admin access and audit trails. The point PAGE 46 is not to eliminate the footprint. The point is to understand it so you can manage it.

The fourth problem is hallucinations and false authority. The legal fix is to treat GenAI as a drafting accelerator, not a truth engine, and to impose a verification discipline appropriate to the filing. When outputs become pleadings, those outputs need the same quality control a junior associate's draft would get: cite checking, quotation checking, and confirmation of the governing rule in the relevant jurisdiction. The technical fix is to pick tools and settings that reduce error rates, but more importantly to build quality control into the workflow, because no model will ever take the risk to zero.

Conclusion

One year ago, in-house teams were prohibiting outside counsel from using GenAI. Today, they are demanding it and asking firms to explain how it will reduce cost and improve speed. The opportunity for outside counsel is to lead clients between "no, no, no" and reckless adoption and toward informed, defensible use. The judge's line in Warner is worth taking seriously: the issue is not AI; it is all modern writing environments and how our ever-changing technology-stack affects confidentiality, retention and sharing. As these tools evolve rapidly, the facts will continue to shift, and the best approach will be the kind that can adapt: doctrine-led, workflow-aware, and technically precise.

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